

UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF MINNESOTA

JOSEPH KIRCHNER,
Plaintiff,

v.

KEITH ELLISON, in his official
capacity as Attorney General of
the State of Minnesota,
Defendant.

Case No. 26-CV-2594 (LMP/DJF)

**DECLARATION OF JOSEPH
KIRCHNER IN SUPPORT OF
PLAINTIFF'S OPPOSITION TO
DEFENDANT'S MOTION TO DISMISS**

I, Joseph Kirchner, declare under penalty of perjury pursuant to 28 U.S.C. § 1746 that the following is true and correct:

1. I am the Plaintiff in this action and proceed pro se. I make this declaration on personal knowledge, and if called as a witness I could and would testify competently to the matters stated herein.

2. I submit this declaration solely to place the parties' meet-and-confer correspondence before the Court in connection with my opposition to Defendant's Motion to Dismiss (ECF Doc. 9). The documents authenticated below are true and correct copies of email correspondence that I sent or received.

A. Meet-and-Confer Correspondence in the Prior Action (No. 0:26-cv-00726)

3. Attached as **Exhibit 1** is a true and correct copy of an email thread exchanged between Assistant Attorney General Matthew A. McGuire and me between March 6 and

March 9, 2026, in the prior action, *Kirchner v. Ellison*, No. 0:26-cv-00726-PJS (D. Minn.).

4. In the first message in that thread, dated March 6, 2026 at 8:19 a.m., Mr. McGuire wrote that the Attorney General was "preparing to file a motion to dismiss this case for failure to state a claim, lack of jurisdiction, and failure to join the federal government as an essential party," and stated that "our position is that your allegations primarily concern the actions of the federal government and do not implicate AG Ellison."

5. I responded the same day, March 6, 2026 at 6:41 p.m. I declined to dismiss and directed Mr. McGuire's office to Minnesota Statutes Sections 8.01 and 8.31, stating that the office's position — that the Legislature "did not delegate" investigative or prosecutorial authority — "finds no support in statutory text." I asked "whether this is a position the Attorney General wishes to defend in federal court."

6. Mr. McGuire replied on March 9, 2026 at 8:47 a.m. His reply identified no statute. Its entire response on the substance was: "Suffice to say the parties to [sic] do not agree on the disposition of the case." The remainder of the reply asked when I would file my amended complaint and accepted electronic service of it.

B. Meet-and-Confer Correspondence in This Action

7. Attached as **Exhibit 2** is a true and correct copy of an email thread exchanged between Mr. McGuire and me between June 10 and June 12, 2026, in this action.

8. In the first message, dated June 10, 2026, Mr. McGuire demanded that I withdraw this Complaint, asserted that it violates "the rule against duplicative litigation," and stated that the email "serves as a safe harbor notice pursuant to Fed. R. Civ. P. 11."

9. I responded on June 12, 2026. I declined to withdraw and posed a single question: that the office identify "the statute, session law, or other legislative act that repeals, withholds, or limits the investigative authority granted to the Attorney General in mandatory terms by Minn. Stat. § 8.31, Subd. 1 and § 8.32, Subd. 2(1)." I stated in writing that, if the office identified that authority, I would "promptly and in good faith reassess the necessity of this action, up to and including voluntary dismissal under Rule 41(a)." I also requested that "any L.R. 7.1 statement accompanying a motion in this action attach this exchange in full," and stated that I would otherwise place it before the Court myself.

10. Defendant's Meet and Confer Statement filed June 17, 2026 (ECF Doc. 12) did not attach the June 12 exchange and did not describe my response or my dismissal offer. Apart from its caption, addressee line, date, and signature block, its entire text states: "I hereby certify that, on June 12, 2026, I met and conferred via email with pro se Plaintiff Joseph Kirchner regarding Defendants' Motion to Dismiss. The parties do not agree on the resolution on any part of the motion."

11. As of the date of this declaration, neither Mr. McGuire nor any other representative of the Office of the Attorney General has identified, in any of the communications described above or in Defendant's memorandum in support of the Motion to Dismiss, any statute, session law, or other legislative act that repeals,

withholds, or limits the Attorney General's investigative authority under Minnesota Statutes Chapter 8.

I declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Executed on July 8, 2026, at Edina, Minnesota.

/s/ Joseph Kirchner

JOSEPH KIRCHNER

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Dated: July 8, 2026